

IN THE UNITED STATES DISTRICT COURT
DISTRICT OF SOUTH CAROLINA
CHARLESTON DIVISION

DEBRA NELSON

Plaintiff,

v.

**Curtiss Wright Electro Mechanical Corp.
d/b/a Curtiss-Wright Steam and Air Solutions
STEPHANIE LANIER, and
SHANE SABLITSKY,**

Defendants.

C.A. No.: 2:25-CV-00405-RMG-MGB

PLAINTIFF'S MOTION TO COMPEL THE DEPOSITIONS OF JEFF WOMACK, BRIAN FOGARTY, AND CALEB ROY AND FOR SANCTIONS UNDER RULE 37

Plaintiff Debra Nelson respectfully moves this Court, pursuant to **Rules 30, 37, and 45**, to compel Defendants to produce **Jeff Womack** and **Caleb Roy**—both current employees of Curtiss-Wright—for deposition, and to compel non-party witness **Brian Fogarty** to appear pursuant to Plaintiff's Rule 45 subpoena. Plaintiff further requests sanctions for Defendants' pattern of obstruction, witness interference, and improper conduct.

I. INTRODUCTION

Defendants have now obstructed **two** properly-noticed depositions—**Jeff Womack** and **Brian Fogarty**—and have provided notice that they do not intend to produce **Caleb Roy**, another material witness. These obstructed depositions **do not count** toward Plaintiff's deposition limit under Rule 30(a)(2). Plaintiff therefore has not exceeded her allotted depositions and remains entitled to depose all three witnesses.

Defendants' pattern of conduct includes:

- Twice refusing to produce Womack on October 21 and November 5
- Improperly communicating on behalf of subpoenaed non-party Brian Fogarty
- Disclosing unverifiable medical claims for Fogarty (back surgery, opioids)
- Failing to produce ANY medical documentation
- Blocking Fogarty from contacting Plaintiff directly
- Failing to move for a protective order or to quash the subpoena
- Running out the discovery clock while shielding witnesses
- Attempting to use obstruction to claim Plaintiff “used up” her depositions

This misconduct violates Rule 30, Rule 45(d)(1), Rule 37(a), and Rule 37(d).

II. FACTS

Case No. 2:25-CV-00405-RMG-MGB

A. Defendants Obstructed the Deposition of CW Employee Jeff Womack

1. Plaintiff noticed Womack's deposition for **October 21, 2025**.
2. Defendants refused to produce him, claiming "medical leave" without documentation.
3. Plaintiff rescheduled Womack for **November 5, 2025**.
4. Defense counsel **affirmatively represented** he would appear.
5. On the morning of November 5, defense counsel reversed position and claimed:
 - o Womack "did not show up to work," and
 - o Allegedly had a "doctor's appointment."
6. Again, NO evidence, no doctor's note, and no sworn declaration were provided.

Womack is a **current CW employee**, subject to Rule 30(b)(1) production.

His deposition has **never occurred**, and therefore **does not count** toward the deposition limit.

B. Defense Counsel Improperly Interfered With Rule 45 Witness Brian Fogarty

Fogarty was subpoenaed for deposition on **October 21, 2025**.

Defense counsel told Plaintiff that Fogarty was:

- "bedridden,"
- "recovering from back surgery," and
- "taking opioids,"
- and "unable to appear."

Critically:

- Fogarty is a **non-party Rule 45 witness**.
- Defense counsel has **no authority** to represent or speak for him unless he retained them—there is no evidence he did.
- Fogarty himself never contacted Plaintiff.
- Defense counsel disclosed his medical information without verification or consent.
- Defense counsel prevented Fogarty from responding to the subpoena.
- Defense counsel never filed a motion to quash or for protective order.
- No medical documentation was ever produced.

This is **improper interference with a subpoena**, a violation of Rule 45(d)(1), and grounds for **sanctions**.

As with Womack, Fogarty did not appear—therefore his deposition does **not count** toward the Rule 30 limit.

C. CW Employee Caleb Roy Has Not Been Produced

Roy is a current Curtiss-Wright employee with direct knowledge related to Plaintiff's claims. CW has indicated they do not intend to produce him.

Since Plaintiff has **NOT** exceeded her 10-deposition limit—because **TWO** attempted depositions were obstructed—CW must produce Roy as a Rule 30(b)(1) witness.

III. ARGUMENT

A. Defendants' Misconduct Means Plaintiff Has NOT Exceeded Her Deposition Limit

Case No. 2:25-CV-00405-RMG-MGB

Rule 30(a)(2) counts **completed** depositions—not attempted ones that were blocked by the opposing party.

Because:

- Womack's deposition never occurred (twice obstructed)
- Fogarty's deposition never occurred (improperly interfered with)

Plaintiff still has open deposition slots.

Defense cannot create their own obstruction and then claim Plaintiff hit her limit.

B. Defendants Violated Rule 45 by Improperly Interfering With a Subpoenaed Witness

Rule 45(d)(1) prohibits:

“Obstructing, evading, or interfering with a subpoena directed to a non-party.”

Defense counsel did exactly that by:

- Speaking on Fogarty's behalf without authority
- Providing unverifiable medical excuses
- Blocking Fogarty from contacting Plaintiff
- Preventing Fogarty's compliance
- Failing to provide documentation

This conduct warrants sanctions under Rule 45 and Rule 37(d).

C. Defendants Violated Rule 30 by Failing to Produce Their Own Employee Witnesses

Womack and Roy are current CW employees.

Under Rule 30(b)(1), Defendants **MUST** produce them unless excused by:

- Court order
- Protective order
- Sworn medical documentation

Defense provided none of these.

D. Defendants Engaged in a Pattern of Bad-Faith Discovery Obstruction

Across multiple witnesses, Defendants engaged in:

- Witness shielding
- Unauthorized communications
- False or undocumented medical claims
- Delay tactics
- Misrepresentation of deposition limits
- Strategic attempts to run out the discovery clock

Such conduct justifies compelling all three witnesses and awarding sanctions.

IV. REQUESTED RELIEF

Plaintiff respectfully requests that the Court:

1. Compel Defendants to Produce Jeff Womack

Within **7 days**, in person, with no further delay.

2. Compel Non-Party Brian Fogarty to Appear

Order Fogarty to appear within **14 days**, with sanctions for his prior failure to appear under Rule 45 and Rule 37(d).

Case No. 2:25-CV-00405-RMG-MGB

3. Compel Curtiss-Wright to Produce Employee Caleb Roy

Within 10 days.

4. Require Documentation for Any Future Claims of Medical Unavailability

Defense must produce:

- A doctor's note
- A sworn declaration
- Medical schedule showing actual incapacity

5. Impose Sanctions Under Rule 37 and Rule 45

Including:

- Costs
- Fees
- Wasted preparation time
- Any other relief the Court deems just

6. Extend Discovery for the Limited Purpose of These Depositions

Only for Womack, Fogarty, and Roy.

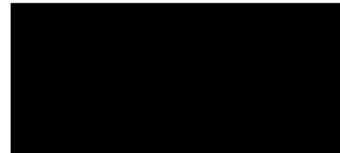
V. CONCLUSION

Defendants have obstructed two depositions and are attempting to block a third. Plaintiff respectfully requests that the Court compel Womack, Fogarty, and Roy to appear and award sanctions for Defendants' pattern of misconduct.

Respectfully submitted 24th of November, 2025,



Debra Nelson
Plaintiff, Pro Se



CERTIFICATE OF SERVICE

I hereby certify that on this 24th day of November, 2025, I served a true and correct copy of the foregoing **Plaintiff's Motion to Compel the Depositions of Jeff Womack, Brian Fogarty and Caleb Roy and for Sanctions Under Rule 37** by email addressed to:

T. Chase Samples, Esq.

chase.samples@jacksonlewis.com

Joseph V. Valenza, Esq.

joseph.valenza@jacksonlewis.com

Jackson Lewis P.C.

Debra Nelson

Pro Se Plaintiff

Case No. 2:25-CV-00405-RMG-MGB

3. **Plaintiff has not exceeded the Rule 30(a)(2) deposition limit**, as neither Womack's nor Fogarty's depositions occurred due to Defendants' obstruction. Plaintiff therefore retains the right to depose these witnesses as well as CW employee **Caleb Roy**, who is a direct fact witness.
 4. The Court finds sufficient grounds to compel the appearances of all three witnesses and to impose limited sanctions under Rule 37.
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IT IS HEREBY ORDERED THAT:

1. Defendants shall produce CW employee Jeff Womack

for deposition **within 7 days** of this Order, at a mutually agreeable date, time, and location.

2. Non-party witness Brian Fogarty is COMPELLED

to appear for deposition pursuant to Plaintiff's Rule 45 subpoena **within 14 days** of this Order.

3. Curtiss-Wright shall produce CW employee Caleb Roy

for deposition **within 10 days** of this Order.

4. Medical Documentation Requirement

If Defendants claim medical unavailability for any witness, they must provide:

- A doctor's note,
- A sworn declaration, and
- Documentation showing the witness was **actually** unable to appear.

5. Limited Rule 37 Sanctions

Defendants shall pay Plaintiff's reasonable costs associated with the October 21 and November 5 deposition attempts, including preparation time and travel or scheduling expenses.

6. Discovery Extension

Case No. 2:25-CV-00405-RMG-MGB

Discovery is extended ONLY for the limited purpose of completing these three depositions.

IT IS SO ORDERED.

United States District Judge

Dated: _____